# *EU: Leverage DMA to regulate AI market*

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## 【メール原文】

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Brussels will leverage DMA to regulate AI while avoiding mega-fines

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EU officials will use data, device, and cloud rules under the Digital Markets Act (DMA) to regulate the AI market without formally adding the technology to the law’s scope.
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The European Commission will increasingly rely on technical specification decisions rather than blockbuster fines for DMA enforcement, lowering the risk of fines-driven tariff retaliation even as the decisions' intrusion into US firms' product design feeds Washington's trade complaints.
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This approach could open AI ecosystems to smaller players without fundamentally altering the market’s structure, while providing more ammunition for Washington’s planned Section 301 investigation on digital trade barriers.

Brussels will use the DMA's existing categories—not a new AI designation—to shape the AI market. EU officials want to prevent tech companies from leveraging their strength in adjacent markets—such as cloud, social networking, or operating systems—to reinforce their position in AI. Officials have ruled out amending the DMA to add AI as a new core platform service since the category is too broad. But they will still use the DMA to regulate the AI market, focusing on data, devices, and cloud.

As a result, despite a recent decline in blockbuster fines, the DMA (and traditional EU competition law) will still influence the shape of the AI market in Europe and potentially beyond. These efforts will add to friction with the White House, which is preparing a Section 301 investigation into what it describes as unfair and discriminatory digital trade barriers.

The decline in blockbuster fines reflects political caution, not retreat. Decisions have been delayed for months at the behest of officials close to European Commission President Ursula von der Leyen. The settlement reached with Apple on alternative app store fees in August was accommodating to the company, a sign of Brussels’s reluctance to push enforcement too hard. The commission also lacks the personnel resources to handle multiple large investigations in parallel and is increasingly drawing on support from national competition authorities.

Still, while Brussels has discretion over the length of investigations, the size of financial penalties, and the settlements it is prepared to accept, it cannot simply stop enforcing the law altogether, which would expose it to legal challenge and backlash from EU member states and lawmakers. After multiple delays, a pair of Google fines totaling $1 billion, issued on 23 July, led to threats from Trump to impose new

tariffs.

Specification decisions, not fines, are becoming Brussels's primary tool for DMA enforcement. This mechanism allows the commission to prescribe how companies must design their products to comply with the regulation, without any prior finding of illegality. It allows Brussels to develop technical solutions with the company concerned while avoiding lengthy investigations and headline-grabbing fines. US tech firms, however, regard the process as regulatory overreach and unjustified interference in product design.

The July Google specification decisions are more consequential than the fines. A June interim order under traditional EU competition law required Meta to open up the WhatsApp for Business API to other AI chatbots. Subsequently, a pair of decisions under the DMA on 16 July required Google to share search data with third-party search and chatbot providers—which Google says risks exposing personal data due to a weak anonymization methodology specified by the commission—and extend to unvetted third-party AI assistants the same system-level Android access it grants to vetted ones. These decisions are more far-reaching than the separate fines that arrived a week later, since they dictate the design of products and the terms of access to proprietary data and operating systems.

Together with the designation of ChatGPT as a very large online search engine under the DMA's sister legislation, the Digital Services Act (DSA), the decisions point to a strategy of steadily extending the EU's platform regulation toolkit into AI. Similarly, the commission may also make use of the virtual assistant category of core platform service—originally designed for voice-activated services such as Siri and Alexa—to designate chatbots under the DMA.

Brussels will soon designate cloud services for the first time. Typically, officials need to balance the speed of action with the need to wait for evidence of harm. With cloud, however, they are prioritizing speed. Following a preliminary decision in June, Brussels is highly likely to formally designate Microsoft Azure and Amazon Web Services in November. Notably, the commission will do so using qualitative criteria, since the two cloud providers do not meet the quantitative criteria established in the law.

The overall approach may open AI ecosystems without fundamentally changing market structure. This has been the outcome from the DMA's first three years in force, which has created opportunities for smaller players without altering the market positions of the major tech companies. At the same time, mandated changes to the products of predominantly US companies will provide further evidence for those arguing that EU digital regulation acts as unfair treatment of US firms.

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